

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 32
JUDICIAL OFFICER: JONI T HIRAMOTO
HEARING DATE: 07/10/2026

ALL APPEARANCES WILL BE BY ZOOM.

The tentative ruling will become the Court's ruling unless by 4:00 p.m. of the court day preceding the hearing, counsel or self-represented parties

EMAIL THE DEPARTMENT at dept32@contracosta.courts.ca.gov to request argument and
SPECIFY THE ISSUES to be argued.

Counsel or self-represented parties requesting argument must advise all other affected counsel and self-represented parties by no later than 4:00 p.m. of his or her intention to appear and of the issues to be argued.

Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Local Rule 3.43(2).)

CourtCall will **NOT** be used by D32.

Zoom is approved for all hearings except Issue Conferences and Trials.

Dept. 32's telephone number is: (925) 608-1132.

Dept. 32's email address is: dept32@contracosta.courts.ca.gov.

Submission of Orders After Hearing in Department 32 Cases

The prevailing party must prepare an order after hearing in accordance with CRC 3.1312. The order must include appearances. If the tentative ruling becomes the Court's ruling, a copy of the Court's tentative ruling **must be attached to the proposed order** when submitted to the Court for issuance of the order.

Zoom hearing information

[https://contracosta-courts-
ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1](https://contracosta-courts-ca.zoomgov.com/j/1613360625?pwd=pSvVmR75t9Q2H5zOgagi9rbG4xeTUM.1)

Meeting ID: 161 336 0625

Passcode: 180770

Law & Motion

1. 9:00 AM CASE NUMBER: C23-00634

CASE NAME: JANE DOE VS. GOLDEN GATE BELL, LLC.

*HEARING ON MOTION IN RE: STAY PROCEEDINGS OR, IN THE ALTERNATIVE, CONTINUE THE TRIAL
FILED BY: GOLDEN GATE BELL, LLC.

TENTATIVE RULING:

Before the Court is Defendants Golden Gate Bell, LLC and Diversified Restaurant Group, LLC's Motion to Stay Proceedings or, in the alternative, Continue the Trial ("Motion").

Defendants' unopposed Request for Judicial Notice is **granted**.

Plaintiff's unopposed Request for Judicial Notice is **granted**.

The Court notes that the RJN requests that the Court take notice of the "Order granting Defendants' Motion to Dismiss, dated July 31, 2025. Docket 17." The

document attached, however, is not the Court's Order on the Motion to Dismiss. Instead, it is the defendant insurance companies' Motion to Dismiss with a [Proposed] Order. The Court can take judicial notice of the facts the defendant insurance companies filed such a motion but cannot take judicial notice that it was granted.

Initial Consideration

The Court notes that Defendants repeatedly cite to "Dkt." at certain lines in their opening brief. There is no explanation, however, as to what "Dkt." refers to. Defendants did not request judicial notice of the federal court docket, so it does not appear that is what they are referring to. As such, the Court is unclear to what those citations refer.

The Court also notes that the parties reference the proceedings before the Ninth Circuit but fail to seek judicial notice – and provide a copy of – the docket for the pending matter. This prevents the Court from having an admissible record of where the proceedings stand. Counsel fail to provide even a declaration supporting their statements about the status of those proceedings. For example, there are several dates listed in footnote 1 of the Reply but without any citation to support these statements.

Without further information, the Court cannot infer what Defendant's mean by their references to "Dkt." In the future, the parties should make sure to attach the correct documents and provide support for their factual assertions via a proper request for judicial notice and/or supporting declaration.

Factual and Procedural Background

This matter involves allegations of workplace harassment and assault of Plaintiff by Defendant Rafael Moreno. Plaintiff was hired to work at Defendant Golden Gate Bell, LLC ("Bell") in September 2022. Shortly after starting work at Bell, Defendant Moreno began to make sexual remarks towards Plaintiff. This escalated to the point where, on December 10, 2022, Defendant Moreno physically assaulted Plaintiff and told her he wanted to have sex with her – on Bell grounds.

On or about December 11, 2022, Plaintiff attended a meeting, accompanied by her mother, with the general and shift managers to discuss the incident. After the meeting, Plaintiff filed a police report. Bell then removed Plaintiff from the work schedule and ultimately terminated her. Plaintiff was a minor at all times relevant to the actions set forth in the Complaint.

On March 21, 2023, Plaintiff filed the complaint initiating this matter. The Complaint alleges 13 causes of action, including five against Defendant Moreno. At some point, Defendant Moreno was arrested. A criminal complaint was filed on

March 17, 2023, charging him with several crimes related to the events of December 10, 2022.

After being sued, Defendants tendered their defense to their insurance carriers. While the carrier initially accepted the tender and defended the matter, in May 2023 it withdrew the defense and denied coverage. Defendants indicate that the coverage dispute is the subject of separate proceedings before the Ninth Circuit and remains unresolved.

Standard for Imposing a Stay

“A court ordinarily has inherent power, in its discretion, to stay proceedings when such a stay will accommodate the ends of justice.” (*OTO, L.L.C. v. Kho* (2019) 8 Cal.5th 111, 141 quoting *People v. Bell* (1984) 159 Cal.App.3d 323, 329.) As the U.S. Supreme Court “explained, ‘the power to stay proceedings is incidental to the power inherent in every court to control the disposition of the causes on its docket with economy of time and effort for itself, for counsel, and for litigants.’” (*Ibid.* quoting *Landis v. North American Co.* (1936) 299 U.S. 248, 254.)

Analysis

Trial Continuance

Defendants filed their motion on May 29, 2026. The request for a continuance asks for an “order continuing the trial date currently set for July 21, 2026, to a date no earlier than November 17, 2026, and continuing all trial-related deadlines accordingly.” (Motion at 14:13-15.)

On June 16, 2026, Plaintiff filed her opposition to the Motion requesting that the Court deny the Motion. On June 22, 2026, however, Plaintiff appeared *ex parte* seeking her own continuance of the trial and all trial-related deadlines, except for summary judgment/adjudication motions.

On June 25, 2026, the Court granted Plaintiff’s *ex parte* application. In that Order the Court continued the trial to January 26, 2027 – a date beyond that requested by Defendants. It also reset dates for the mandatory settlement conference and issue conference.

Accordingly, Defendants’ request for a continuance is **denied as moot**. The Court has already continued the trial to a date beyond that requested by Defendants.

Stay of Proceedings

Defendants’ request a stay of all proceedings pending the determination of the Ninth Circuit appeal related to their coverage dispute with their insurance carriers or 180 days, whichever occurs first.

As outlined above, the complaint in this matter was filed on March 21, 2023. Defendants tendered to their carrier(s) and the carrier(s) initially accepted coverage. According to Defendants, “in May 2023” the carrier(s) “withdrew the defense” and “denied coverage....” (Motion at 6:16-21.) At some point thereafter (neither party provides a precise date), Defendants sued their insurance carrier(s). They make clear that coverage was withdrawn “after five months and no insurer has paid defense costs since....” (Motion at 12:23-24.) Defendants waited for three years, however, to inform this Court of the dispute with its carrier(s) and to seek any kind of relief.

It is unclear when the Ninth Circuit will rule on the underlying action. According to Defendant’s Reply papers, Defendants’ opening papers were due July 7, with answering briefs due August 6, and any optional reply brief due 21 days after service of the answering brief. (Reply at fn. 1.) There is no mention of when oral argument may be scheduled or when a final ruling may occur.

The Court is mindful of the predicament a party is put into when defending an action while simultaneously fighting with its insurer to obtain coverage it believes it is entitled to. Here, however, Defendants have been vigorously defending this matter for years while the dispute with its insurer plays out. It does not appear that continuing to do so would be a substantial burden on Defendants – at least related to continued discovery and associated issues related to moving this matter forward toward trial.

The issues related to settlement present different concerns. As noted by Defendants, the parties have previously participated in two mediations – in August 2024 and April 2026 – but were unable to resolve the matter. Defendants indicating that they have “been unable to meaningfully evaluate settlement without clarity regarding whether their insurers will participate in funding any resolution.” (Motion at 8:16-17.) The Court is aware that the availability of insurance proceeds to fund a settlement can be a very important aspect of evaluating and finalizing a settlement between parties.

The Court notes that when this motion was filed the case was set to go to trial on July 21, 2026. Since that time,

[1] the trial has been continued until January 26, 2027, 10:00 a.m., in Dept. 32,

[2] the Issue Conference is now set for January 15, 2027, 1:30 p.m., in person, in Dept. 32,

[3] There is also mandatory judicial settlement conference scheduled for October 29, 2026 at 1:30 p.m. (in person) in Dept. 20 with Judge O’Connell.

The Court is aware that the presence or absence of insurance could impact those discussions.

Currently, the Court is not inclined to stay the proceedings. It believes the parties should continue to move forward with discovery – especially given the contentious nature of the discovery proceedings to date – and working toward getting this matter ready for trial. The Court may consider continuing the mandatory settlement conference (and possibly trial) date again if it appears that a resolution of the Ninth Circuit appeal is imminent.

Given the changing circumstances since the filing of the original motion and the Court's initial thoughts outlined above, the Court is open to hearing from the Parties regarding their thoughts on how best to proceed. The Court would also like an update on the status of the Ninth Circuit appeal, especially related to scheduling of argument (if any) and/or any deadlines wherein the Parties expect a ruling from the Ninth Circuit.

The Court notes that an Issue Conference was originally scheduled for 1:30 the same date as the hearing on this motion (Friday, July 10), and that a new Issue Conference date of January 15, 2027 1:30 p.m. in Dept. 32 (in person) was set by the court. **The court meant to vacate the July 10 2026 date when it set the January 15 2027 date, and does so now.**

Conclusion

Defendants' request for a continuance of the trial date is **denied as moot** given that the Court continued the trial date to January 26, 2027, while this motion was pending. The request to stay the matter is also **denied**.

The Issue Conference set for 1:30 p.m. on July 10, 2026 is vacated. The Issue Conference has been set for January 15, 2027 at 1:30 pm in Dept. 32.

Parties are advised to familiarize themselves with Dept. 32's Issue Conference Orders, available on the court's website.

2. 9:00 AM CASE NUMBER: C23-01988
CASE NAME: MATTHEW PARRY VS. GELCO FLEET TRUST
HEARING ON SUMMARY MOTION
FILED BY: MERCEDES-BENZ USA, LLC
TENTATIVE RULING:

Continued by the Court to August 21, 2026.